

1. Democracy and Constitutionalism

- **Democratic theory is based on a notion of human dignity; dignity taking the central and highest value worthy of respect.** And adults ought to be endowed with a large **degree of political autonomy** – a status principally attainable by being able to share in the **governance of the state they belong to**. Because direct rule is not feasible, people can engage themselves in self-government only by delegating authority to freely chosen representatives. Thus, what justice – Hugo L. Black expressed – is a critical tenet of democratic theory is very much true: *“[n]o right is more precious in a free country than that of having a voice in the election of those who make the laws under which [the]...must live.”*
- **Constitutionalism enshrines** respect for human worth and dignity as its central principle, too. To protect that value, **citizens must have a right to political participation, and their government must be hedged in by substantive limits on what it can do**, even when perfectly mirroring the popular will. What constitutionalism insists on is having limited government. Predictability of governmental actions is also a characteristic feature of its typology. Its opposite is capriciousness or unpredictability – the hall-mark of tyranny. Hence, the 1st paragraph above postulates democracy as *majoritarian politics*, whereas the 2nd paragraph relates to *counter-majoritarianism*. The one pertinent question that has to be dealt with is whether the *marriage* between them is *oxymoron (contradictory terms appear in conjunction)*?
- **Constitutionalism**
 - Provide general structure and power of machinery of government:
 - ✓ Separation of powers among the three branches.
 - ✓ Jurisdictions: states right i.e basic political jurisdictions e.g. federal versus state. states right are really a matter of plural, distinct jurisdiction's in the machinery of government. Sometimes, states use their jurisdiction and machinery of government to restrict individual rights and liberty.
 - ✓ Checks and balance among the branches.
 - A constitution establishes also a sphere of Individual rights. rights crucial to liberty are:
 - ✓ Procedural rights
 - ✓ Freedoms from interference
 - Two normative conceptions of the nature and scope of individual rights:
 - ✓ One conception is instrumental and narrow: defines rights as freedoms necessary to achieve full and fair democracy in collective

decision making. Think of the right to vote enumerated in our constitution.

- ✓ The second one is substantive and broad conception of individual rights which establishes a presumption (pre-supposed) of liberty across the board. Look article 10 (1) of the FDRE constitution.

- Democracy
 - Equality: 1 person 1 vote
 - Majority rule
 - ✓ Direct
 - ✓ representative

I. Democratic Theory

- Although the social and economic conditions supporting a viable representative democracy are wonderfully complex, only a few formal, institutional conditions need obtain:
 - a. **Popular election of representatives**, by universal adult suffrage in districts of approximately equal population for limited terms, to institutions that allow those representatives to govern free entry of citizens to candidacy for electoral office: and
 - b. **Freedom of political communication and association** so citizens can be informed and can try to persuade others to join them. These conditions, of course, require a **plethora of ancillary rights**. Together they create a nearly **open market of political ideas to allow the people to choose candidates intelligently and form groups to express common interests**.
- For **democratic theory**, what makes governmental decisions **morally binding is process**: the people's freely choosing representatives, these representatives debating and enacting policy and later standing for reelection, and administrators enforcing that policy.
- **Democratic theory**, therefore, **tends to embrace both positivism and moral relativism**. Moral relativism is the idea that there is no universal or absolute set of moral principles. It is a version of morality that advocates to each her own, and those who follow it say, who am I to judge?
- **Moral relativism can be understood in several ways**:
 - **Descriptive moral relativism** also known as cultural(moral standards are culturally defined)
 - **Meta-ethical**(states that there are no objective grounds for preferring

the moral value of one culture over another and societies make their moral choices based on their unique beliefs, customs, and practices).

- **Normative moral relativism**(all societies should accept each other's differing moral values, giving that there are no universal moral principle),
- **Moral absolutism** is on the opposite end of relativism and which says that there is always one right answer to any ethical question.
- **Positivism** the theory that laws and their operation derive validity from the fact of having been enacted by authority or of deriving logically from existing decisions rather than from any moral considerations. The claim for [representative democracy] is most persuasively put” Michael Walzer says, “**not in terms of what the people know, but in terms of who they are. They are the subjects of the law, and if the law is to bind them as free men and women, they must also be its makers.**”
- The **chief check democratic theories posit against tyranny is that the people will not tyrannize themselves.** They will try to choose officials who will not enact oppressive laws and will vote out of office those who do. The “mass of citizens,” Jefferson asserted, “is the safest depository of their own rights.” Thus democratic theory esteems **popular participation not only for its positive effect of expressing individual autonomy but also for its negative effect of deterring governmental incursions into individual rights.** It was because of this negative function that the U.S. Court referred to voting as “a **fundamental political right, because preservative of all other rights.**”
- Because **voters need to be informed to protect their interests**, democrats speak glowingly about **freedom of communication.** As the German Constitutional Court said, quoting the U.S. Supreme Court: [T]he basic right of **free expression** is one of the principal human rights...For a free, democratic order it is a constituent element, for it is **free speech that permits continuous intellectual discussion, the battle of opinions that is its vital element...**In a certain sense, it is the basis of any freedom...the matrix, the indispensable condition of nearly every other form of freedom.
- Yet, even in tandem, **communication and voting** are not sufficient for forming and expressing “**the will of the people.**” Democratic theory also demands a **right to act in concert with others** (right of association). Beyond debate that freedom to engage in association for the **advancement of beliefs and ideas is an inseparable aspect of the ‘liberty’ assured by law.**
- Many theorists find an effective second check in the way democratic politics operates in large, diverse nations. They contend that most people have small concern for most political issues. This low level of involvement allows **coalitions**

of minorities to form temporary alliances, trading support among themselves on different issues. These theorists claim that political cleavages are rarely cumulative; hence, an interest group is not likely to be continually allied with one set of groups against another permanent coalition.

- Democratic theorists do not assert that these checks always protect liberty or even prevent public officials from acting independently to create public policy. Rather, they argue that, overall, such **checks push public officials to mediate among interests, to broker, not adjudicate—or themselves contest in—winner-take-all struggles**. In sum, officials will be wary of oppressing any group, for fear it will become part of tomorrow's winning coalition. At a deeper level, **democracy may cause a people to accept respect for competing interests as not only legally but, more importantly, as “itself a form of justice.”**
- Other proponents perceive a Rousseauian limitation: [The popular will its representatives reflect must **will generally**.] A valid law cannot simply reflect prejudices against minorities by imposing burdens only or principally on them. Such a limiting principle flows from the premise that the **people as a whole are sovereign** and majority rule is no more than a decision-making arrangement.

II. Constitutionalism:

A. Meaning of Constitutionalism

- In ordinary parlance, constitutionalism may be defined as a ‘belief in constitutional government.’ But what does constitutional government refer to? Does it refer to a government with a constitution or government established according to a constitution, or a government acting according to a constitution? The concept seems to lack clarity.
- Constitutionalism can be defined as **the doctrine that governs the legitimacy of government action, and it implies something far more important than the idea of legality that requires official conduct to be in accordance with pre-fixed legal rules**. In other words, constitutionalism checks whether the act of a government is legitimate and whether officials conduct their public duties in accordance with laws pre-fixed/ pre-determined in advance.
- The latter definition shows that having a constitution alone does not secure or bring about constitutionalism. Except for a few states which have unwritten constitutions, today almost all the nations/states in the world have

constitutions. This does not, however, mean that all these states practice constitutionalism. That is why constitutionalism is far more important than a constitution.

B. Features (Characteristics) of Constitutionalism

- Constitutionalism combines the idea of a government limited in its action and accountable to its citizens for its action. The modern concept there fore rests on two main pillars.
 1. The existence of certain limitations imposed on the state particularly in its relation with citizens based on certain clearly defined core value.
 2. The existence of clearly defined mechanisms for ensuring that limitations on the government are legally enforceable. Look article 37 of the FDRE constitution.
- According to Barnett, constitutionalism embraces limitation of power (limited government), separation of powers (checks and balances) and responsible and accountable government. Henkin identifies popular sovereignty, rule of law, limited government, separation of powers (checks and balances), civilian control of the military, police governed by law and judicial control, an independent judiciary, respect for individual rights and the right to self- determination as essential features (characteristics) of constitutionalism.
- We shall thus focus on the following basic elements:
 1. Popular sovereignty
 2. Separation of Powers (checks and balances)
 3. Responsible and accountable government
 4. Rule of law
 5. An independent judiciary and a review of the constitutionality of laws.
 6. The recognitions and protection of individual rights
 7. Respect to self-determination
 8. The control of the amendment of the constitution
 9. Civilian control of the military
 10. Police governed by law and judicial control

a) Popular Sovereignty

- Popular sovereignty envisages the fact that the public is the source or fountain of all governmental authority. The legitimacy of any governmental power is derived from the consent of the public. In other words, the government ~~acquires~~ its mandate from the people. The source of all

sovereignty lies essentially in the nation. No corporate body, no individual may exercise any authority that does not expressly emanate from it. Even though there is a certain sovereign entity which is empowered to govern, ultimate sovereignty resides in the nation. The power of such sovereign entity emanates from the public.

- In other words, the public is involved in the decision making process which may take different forms. The most obvious one is election of representatives. The public is entitled to elect representatives who represent it. However, such election should be free, open (transparent) and fair. When the public loses confidence in its representatives and where the latter fail to represent the interest of the public, representatives may be recalled before the expiry of their term of office.
- **Referendum** is the other mechanism by which the sovereignty of the public is manifested or expressed.
- In some liberal democratic countries like USA, UK, France, Federal Republic of Germany etc, the principal role of the public is to control the activities of the government and to exercise a **sort of veto power which goes beyond mere participation**.

b) Separation of Powers (Checks and balances)

- Under constitutionalism, power is not concentrated in any one organ of the state. It is diffused (divided) among the three organs of the state i.e., the legislature, the executive and the judiciary. If power is monopolized by any one organ of the state there could be abuse of power, tyranny and dictatorship. Nor can there be liberty. For example, the legislature, in addition to its law-making power is not allowed to exercise the roles of the executive; and the judiciary is not allowed to execute the laws which it interprets. These two powers are reserved to the respective organs i.e. the executive and the judiciary, respectively. Here-below, a comparative overview of four legal systems including Ethiopia is made on the basis of law making power and judicial review.

c) Responsible and Accountable Government

- In the democratic nations (countries) people perceive their government as their own servant. The government is there to serve their interest or act as the steward of their interest. The governments assume office in the name and on behalf of the public for the benefit of the public. the relationship between the government and the public/ the citizen is analogous to the relationship between a principal and an agent. The agent is there to act in the name and on behalf of the principal. He is expected to act diligently in the best interest of the principal until such time that the period of

authorization expires. When the agent fails to act in the best interest of the principal or fails to account for his performance or fails to act diligently, the principal may revoke the authorization.

- The same applies in the relationship between a government and the public. As a government assumes office in the name and on behalf of the public, it is directly accountable or responsible to the public. When a government (i.e., the agent) fails to act in the best interest of the public (i.e., the principal), the latter revokes **authorization through the ballot box**.

d) Rule of Law

- Rule of law denotes a government of laws and not of men. Individuals working within the state machinery are expected to exercise their official duties and responsibilities in accordance with the law. In other words, rule of law represents the supremacy of law. According to Dicey, rule of law envisages the following:-
 - No one is punishable except for a distinct breach of law established in the ordinary legal manner before the ordinary courts of the land;
 - No person is above the law;
 - Courts play a vital role in protecting the rights of individuals.
- The first component of rule of law is related to the principle of legality. If a certain behavior is not categorized as a criminal act by the constitutionally mandated lawmaking organ, it is not treated as a criminal act and is not punishable. It is treated as an innocent act. Secondly for an act to be punishable, the act must be classified or identified as a criminal act by the legislature through the law-making process enshrined in a constitution and other laws. Finally, once a certain behavior is classified as a criminal act, the accused should be tried and punished by the ordinary courts. Ordinary courts refer to courts established in accordance with a country's constitution. It may not include any extra-judicial or extra-ordinary court not recognized by the constitution of the land.

e) An Independent Judiciary

- In liberal democracy the individual is at the center, and "Judicial independence is the hallmark of liberal democracy".¹⁸ The rights of individuals are ensured and respected. Courts play a vital role in ensuring and respecting the rights of individuals. An independent judiciary is the cornerstone of a free society and rule of law.¹⁹ As it is already discussed hereinabove, rule of law envisages a government of laws. A government is obliged to act according to laws set by the legislature. However, if there is

failure to adhere to the laws, an independent judiciary shall check such events.

- An independent judiciary is also necessary to maintain the supremacy of a constitution. If the legislature comes up with a law which is contrary to the constitution, an independent judiciary, through the principle of judicial or constitutional review, has the power to declare it null and void. The whole purpose of judicial or constitutional review is not to snatch the powers given to other organs or to create judicial despotism, but to maintain the supremacy of the constitution i.e., the supreme law of the land.
- In addition, judicial independence helps judges to discharge their judicial functions without fear or favor. Justice can become fearless and free only if institutional immunity and autonomy are granted. the autonomy of the judiciary as an institution; yet, the independence of the institution is inseparable from the independence of individual judges.
- Moreover, the decision or judgment rendered by courts must be executed. If decisions are overturned by other organs of the state, the independence of the judiciary shall be at a risk. It is a threat to the very independence of the judiciary. The judiciary shall become like a lion without teeth.
- Furthermore, the sitting of judges in particular benches should be handled by the courts themselves. Any external entity must not be allowed to order a court in the assignment of judges to cases.

f) Ensure and Respect Individual Rights

- The incorporation of the rights of individuals in a constitution and other laws is essential, but not an end by itself. It is a means to an end. It must be seen that these rights are duly respected and protected.
- Article 1 of the UN Charter included the promotion and encouragement of respect for human rights and fundamental freedoms for all without distinction as to race, sex, language or religion. Similarly Article 55 of the UN Charter states that the United nations shall promote universal respect for and observance of human rights and fundamental freedoms for all without distinction as to race, sex, language, or religion. In addition Article 56 of the Charter imposes obligation on member states to ensure the observance of Article 55 of the Charter.
- A similar provision is enshrined in the International Covenant on Civil and Political Rights. Article 2 of the Covenant stipulates that “each state party to the present covenant undertakes to respect and

to ensure to all individuals within its territory and subjects to its jurisdiction the rights recognized in the present covenant without distinction of any kind such as race, colour, sex, language, religion, political or other opinion, national or social origin, property, birth or other status.”

- There are certain basic rights which may not be derogated from even at the time of state of emergency. According to Article 4 (2) of the Covenant, the Articles dealing with the right to life, the right not to be subject to torture or cruel or inhuman or degrading treatment or punishment, not to be held in slavery and servitude, not to be imprisoned due to non performance of contractual obligation, not to be held guilty or convicted for any criminal offence which is not criminalized at the time of the commission of the crime and omission or imposing heavier penalty, the right to be recognized as a person and the freedom of thought, conscience and religion may not be derogated in time of public emergency.
- By virtue of Article 4(1) of the Covenant, a state of public emergency must be officially proclaimed. Since it says proclaimed, it must be proclaimed by the legitimate organ or authority authorized to do so by the constitution. Secondly, the emergency must threaten the life of a nation as a whole. During a state of emergency, derogation from the obligations imposed by the Covenant is possible except as regards the aforementioned rights which are absolutely non-derogable. The derogation should be to the extent required by the exigencies of the situation. Such derogation shall not violate other international obligations imposed on the state concerned and would not be implemented by discriminating on the basis of race, colour, sex, language, religion or social origin.
- Furthermore, pursuant to Article 4(3) of the Covenant, the state exercising state of public emergency is obliged to notify other state parties to the Covenant the provision which is derogated from and the time when such state of emergency is to cease.

g) Respect for Self-determination

- Self-determination refers to the right of a people living in a territory to determine the political and legal status of the territory, for example, by setting up a state of their own or by choosing to become part of another state. However, this right is granted to colonies and dependent states. This is clearly stated under Article

1(2) and 55 of the UN Charter.

- The right to self-determination is also recognized under Article 1(1) of the International Covenant on Civil and Political Rights. It reads as follows:

All peoples have the right of self-determination. By virtue of that right they freely determine their political status and freely pursue their economic, social and cultural development.

- In the 1918 Soviet Union Constitution, the right of self-determination was recognized although it was not practicable until the Soviet Union broke up into different autonomous republics after the introduction of perestroika. According to Vladimir Lenin, self-determination in the sense of secession or forming an independent state is possible only for culturally distinct groups.

h) Civilian Control of the Military

- Our principle is the party commands the gun, and the gun must never be allowed to govern the party. Mao Zedong. According to the above statement, the party is sovereign or autonomous. It is the party which governs the gun (the military). To some extent the theme of Mao Zedong's statement seems to hold true in the contemporary world as well. In democratic countries, it is the democratically elected officials who are allowed to govern or control the military, although technical affairs are left to the military personnel.
- Instead, if full autonomy or sovereignty is granted to the military leaders, they might divert the democratic decision-making process and may use force which may go the extent of coup or military dictatorship. The military may also crush democratic political opposition, through intimidation and use of physical force and interfere with domestic elections. Samuel Adams stated that even when there is a necessity of the military power, wise and prudent people will always have a watchful and jealous eye over it.²⁵ Elbridge Gerry, a delegate to the American Convention also stated that standing armies in time of peace are inconsistent with the principles of Republican Government, dangerous to the liberties of a free people and generally converted into destructive engines for establishing despotism.

i) Police Governed by Law and Judicial Control

- The prime responsibility of ensuring peace and order is borne by the police. It shoulders the duty of bringing wrong-doers to justice. However, when the police discharge such duties, constitutionalism requires them to honor and respect the rights, dignity and freedoms of individuals including wrong-doers and persons suspected of offences. It is to be noted that a suspect has the right to be presumed innocent until proved guilty by the competent court.
- The Universal Declaration of Human Rights and the International Covenant on Civil and Political Rights prohibit torture, cruel, inhuman and degrading treatment and arbitrary arrest and/or detention. Similar provisions are incorporated in the FDRE constitution:-
 - **Every person is to be protected from cruel, inhuman and degrading treatment(Article 18(1);**
 - **Persons arrested are entitled to be notified promptly in the language they understood the reason for their arrest (Article 19(1);**
 - **Persons arrested must be informed promptly of their rights to remain silent (Article 19(2);**
 - **Persons arrested must be brought to court within 48 hours (Article 19(3).**
- In order to check whether the police adhere to and respect the above fundamental principles and rights of arrested persons, courts should keep an eye on the police. If, for example, any evidence is obtained through torture, the evidence is considered illegal and courts /reject the evidence. In general, the police are expected to act according to the law. When, instead, the police violate the laws they are entrusted to enforce, the result turns out to be not only an assault on human dignity and the law itself, but the creation of barriers to effective policing.
- The practical effects of police violations are multifold :

 - Public confidence is eroded;
 - Civil unrest is exacerbated;
 - Effective prosecution in courts is hampered;
 - The police is isolated from the community; and
 - Results in the guilty going free and the innocent being

punished.

- **Despite some basic agreements, the two theories differ significantly. Constitutionalists tend to be more pessimistic about human nature, fearing that people are sufficiently clever to oppress without hurting themselves. Constitutional theorists do not deny the importance of institutional and cultural checks but see those as insufficient. They are constantly concerned with the human penchant to act selfishly and abuse power. They want institutional restraints on substantive matters to prevent lapses into an authoritarian or even totalitarian system cloaked with populist trappings.**
- Whereas **democratic theory turns to moral relativism**, constitutionalism turns to **moral realism**(is the position that **ethical sentences** express **proposition that refer to objective**, features independent of subjective opinion, features of the world).
- It presumes that “out there” lurk discoverable standards to judge whether public policies infringe on human dignity. The **legitimacy of a policy** depends not simply on the **authenticity of decision makers’ credentials** but also on **substantive** criteria. For constitutionalists, **political majority** cannot be weighed on a scale in which “opinion is an omnipotence, only against the **moral criterion of sacred, individual rights**. They agree with Jefferson: “An elective despotism was not the government we fought for.
- To delineate constitutionalism, one has to recognize that it has two connotations, closely connected, though.
 1. **In one of its senses it indicates the striving of codification of the organization of state and power.** The first sense inclines more to the organization of the state and functions by legal means, which is the essence of constitution.
 2. On the other hand, constitutionalism may refer equally as well to the ideals, particularly **political ideals regarding the organization of the state**. The second pertains to Political Science; one of its achievements or end products is democracy, which is majoritarianism.
- **Democracy** is taken as essentially referring to being governed by duly elected representatives, of which the group which won the majority becomes the ruling party, and wherein decisions are normally made by majority vote. Does *Rule by Majority* guarantee the security and wellbeing of minorities and that of the individual? The restraints may aim at protecting the individual’s or group rights and freedoms against governmental interference. This is the **substantive and actually the substantial aspect of constitutionalism. In contradistinction to**

this, the formal constraints pertain to the organizational aspects of constitutionalism.

- **Constitutionalism**, therefore, pertains to two kinds of relationships.
 1. The relationship between government and nationals/citizens, residents/ is the first category – **the substantive**.
 2. The second (the formal) refers to the appraisal of one branch of government vis-à-vis the other; and to their inter-relationship. It is these two aspects of constitutionalism which are the quit-essentials of a constitution, is that written, rigid, flexible, etc.

III. Constitutional Democracy

- Although the strain between the two theories is always real and often serious, one must not exaggerate their differences. Both **accept the centrality of human dignity; they differ on how best to protect that value**. By limiting **legitimate governmental action**, constitutionalism tries to lower the stakes of politics, to restrict the risks to liberty and dignity of being a member of a political society. **Democratic theory attempts to limit those risks by protecting the right to share in governmental processes.**
- To an extent, the two theories need each other. A majority may so restrict a minority's substantive rights and social status as to drain its formal participation rights of real effect, a danger to which constitutionalism is especially alert. Constitutionalism's perils lie in **its propensity to paralyze government and so create a kind of oppression**: Governmental inaction, no less than action, generates costs and benefits. Democracy, on the other hand, tends to respond **to what elected officials perceive their constituents perceive to be societal problems**.
- To enjoy reasonably **effective but still limited government**, many countries have **adopted a mix of constitutionalism and democratic theory**. Most so-called democratic systems, such as those of Australia, Austria, Canada, Germany, India, Ireland, Italy, Japan, Spain, and the United States, would be more accurately classified as constitutional democracies. Each of these polities provides for a **wide measure of popular political participation and simultaneously restricts the people's government by a variety of institutional means**. Each tries to distinguish among powers to legislate, execute, and adjudicate, has some version of bicameralism, and includes a bill of rights. Australia, Canada, Germany, India, and the United States use **federalism to defuse power further**; and, to **splinter this diffused power of majorities**, the United States employs staggered elections for its legislature and directly elects its president. Each also authorizes politically independent judges to invalidate legislative and executive action they believe violates "the

constitution.”

- If these institutional webs formed merely “parchment barriers,” they would be important only to students of rhetoric. To think that words can constrain power seems foolish. **Yet a political chemistry may turn sheets of paper into hoops of steel through:**
 1. First, by **prescribing institutional structures and fracturing power among different offices a document can push officials**, as Madison recognized, to link their own interests with those of their office **and jealously guard those interests against putative incursions by other officials**. Further, **by drawing vague divisions of authority**, a document can make it likely that no set of officials can do much that is politically important without arousing the territorial imperative of other officials. Thus, **a constitutional text can disperse power and protect liberty by putting ambition against ambition and power against power.**
 2. **Culture** forms the second element in that political chemistry; A constitutional text that requires its officials to swear to support it can **forge a moral bond**. Much of the text may thus become part of the nation’s customs. Children may learn about it in school as the “proper” way of politics, and later, as adults, internalize its provisions; mature citizens may come to look on it as prescribing rules for a just society; and officials may habitually put most of its command into practice. Yet, as they have tendency to impress some degree of respect for them, to establish the public opinion in their favor, and rouse the attention of the whole community, **it may be one means to control the majority from those acts to which they might otherwise be inclined.**
- In his famous work, *The Spirit of the Laws*, **Montesquieu identified three decisive elements in the shaping of a polity:**
 - a. The “spirit of the laws” or the kind of institutions established in a society,
 - b. The character of the rulers, and
 - c. The moral habits of the people
- Inspired by this approach to the problem of controlling the exercise of power, constitutionalism in the West has represented a rich and varied body of ideas and arguments about the civic virtues and the institutional conditions which need to be cultivated and sustained if a society is to be capable of living under a **liberal constitution**, that is to say, one under **which individuals are protected in the enjoyment of their rights and freedoms, the laws are applied equally and fairly, and the rulers are subject both to law and the judgment of those they represent.** But obviously no modern written and

codified constitution dedicated to these values is going to work unless the second and third of **Montesquieu's conditions** are met at least in some degree, and they refer to matters which cannot be brought into existence merely by the fact of **having a piece of paper labeled "the constitution."**

- The standards required of a liberal constitutional order are:
 - one under **which individuals are protected in the enjoyment of their rights and freedoms,**
 - **the laws are applied equally and fairly, and**
 - **The rulers are subject both to law and the judgment of those they rep.**
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IV. Constitutionalism in Africa

- It is necessary to discuss a problem of constitutionalism closer at home. One can boldly assert that a practical example of how a constitutional text becomes a sham document or irrelevant in the day to day business of the government in power would be found in Africa. Today, although some African countries (e.g. post-Apartheid South Africa, Ghana, and Botswana) are trying to break away from this sad situation, most still find them entangled in it. It is actually difficult as citizens of this continent to understand why power elites become so selfish and self-serving.
- Why do African political leader don't they feel restrained by constitutions they often enact? What is wrong with our culture? Why do they not feel ashamed of the fact that hundreds are killed, maimed, imprisoned, and displaced just in the struggle between themselves and their opponents who want to bring them down? Why are African leaders unable to solve their political differences peacefully? Think of our own post 2005 elections crisis which resulted in a great political turmoil and that was never solved peacefully and satisfactorily, but was submerged in the events that ensued subsequently, such as the trial and imprisonment of the main opposition leaders. As a result of the disagreement between the newly formed EPP and the TPLF when the latter lost its political hegemony at the center in Ethiopia starting from April 2018, the TPLF retreated to Mekelle. The disagreement between the two got further escalated and ended up in the breakout of armed conflict between the two sides when, as evidence shows, the TPLF attacked the Northern command of the Ethiopian defense force on the evening of 3 November 2019. These and many other examples can be mentioned to show the extent of governance crisis in Africa.
- Sadly, more than 50 years have passed since most African states became independent political entities, but there is no political breakthrough in sight. For Ethiopia, the story is completely different because it has never been colonized and its own state administration system has been around for thousands of years. It becomes more of sorrow for us Ethiopians that in spite of centuries of existence, we have not been able to establish a credible democratic political system to this moment. There should be

reasons for these failures to be explained away which we should try all the time, until we get to see that the **incumbent government leaves office peacefully when defeated by the ballot, not bullet!**

- A number of perspectives have contributed to this distressing lack of interest in African constitutions. **The first is primarily ideological and argues that the primary function of a constitution is to limit governmental authority and to regulate political processes in the state.** This view, whose origin lies in the liberal democratic tradition, forms the backdrop of many arguments among politicians and academics about the “correct” exercise of power in Africa. According to this view, there can be no “constitutional” government unless:
 - **Mechanisms exist within the constitution for the supervision of these functions;**
 - **Such mechanisms must be erected on the doctrine of the separation of powers and the principle of limited government,**
 - Both of which must conform to the theory that government itself ought, at all times, to conform to the rule of law.
- **The paradox lies in the simultaneous existence of what appears as a clear commitment by African political elites to the idea of the constitution and an equally emphatic rejection of the classical or at any rate liberal democratic notion of constitutionalism.** The paradox, however, is both sufficiently manifest and intriguing to merit an examination to explain the contemporary patterns of constitutional development in Africa (or lack of them).

I. Constitutions as Organized Power

- The analysis of the paradox begins with a simple but important assertion: all law, and constitutional law in particular, is concerned, not with abstract norms, but **with the creation, distribution, exercise, legitimation, effects, and reproduction of power;** it matters not whether that power lies with the state or in some other organized entity. From this perspective, therefore, the very idea of law, hence of a constitution as a special body of law, entails commitment or **adherence to a theory of organized power**, as appears evident in the historical experience of power has become more predictable, and even legal-

rational in Weberian sense, merely records the complexity of the relationship between power and law in different contexts.

- A useful model for the analysis of any constitution, therefore, is to regard it as a “**power map**” on which framers may delineate a wide range of concerns:
 - An application of the Hobbesian concept of “covenant” as in the American constitution;
 - A basic constitutive process, as in the Malawi constitution;
 - A code of conduct to which public behavior should conform, as in the Liberian or French constitutions;
 - A program of social, economic, and political transformations, as in the Ethiopian (1987) or Soviet constitutions;
 - An authoritative affirmation of the basis of social, moral, political, or cultural existence, including the ideals toward which the polity is expected to strive, as in the Libyan constitution.
- The **process of constitution making**, which involves, inter alia, **making choices as to which concerns should appear on that map cannot be regarded as a simple reproduction of some basic principles that particular societies may have found operational**. It is, as D. Elazar has noted, an “**eminently political act.**” which must draw on **past experiences and future aspirations**. An analysis of the African constitutional paradox must start, therefore, with an examination of the political origins **of the idea of the constitution in the Continent**.

II. The Nature of the Paradox

- The precise form in which that paradox, commitment to the idea of the constitution and rejection of the classical notation of constitutionalism, has emerged over the last three decades requires a description. The idea of and the necessity for a constitution appear fully established in the minds of state elites in Africa in at least two important senses.
 - ~~1. First, the constitution is **an act without which the polity can have no legitimate or sovereign existence**~~; it is of no small significance, for example, that the very first article of most African constitutions declare that each respective country is sovereign. In Africa, the idea that the constitution is “**a means to demonstrate the sovereignty**

of the state” appears quite strong: in that sense, **the constitutive value of some form of a constitution remains preeminent**. It is notable that very few European and American constitutions make such declaration; **sovereignty is assumed as the basis of constitution making**.

2. Second, **the idea of the constitution is firmly established as the basic law of the state**. Since all African independence constitutions provide for some method of change, fundamental alteration, or even total abrogation, the notion of a basic law in the African context entails no element of sanctity. What it does entail is minimum, and perhaps popular observance of the rules contained in the constitution. The notion that a constitution is important as a basic law in the above sense underlies the amendments, the revisions, and the experimentation with non-Westminster models by civilian governments. This search for autochthony involves not only the rejection of external (specifically “western”) institutions and constitutional “devices,” but, more emphatically, the abandonment of the classical notion that the purposes of constitutions are to limit and control state power, not to facilitate it. A purely **instrumental view of the purposes of a constitution** in classical theory, is to control and supervise constitutionality.

III. The Origins of the Paradox

- The question to ask is how did African states get into this quandary? It is my argument that the answer to that question requires a careful scrutiny of **Africa’s immediate past history**; in particular, and appreciation of a number of historical legacies.
 1. The first legacy is **the nature of legal** (as distinct from constitutional) **order** that many of these states inherited at independence and perpetuated after it. **Two characteristics dominated that colonial power and administration**. The more visible was its **labyrinth bureaucracy**; the other was its **coercive orientation**. Indeed, little distinction was normally drawn between the administration of those areas of public policy associated with state coercion, such as the criminal

justice system or “public” order, and those that would normally be reserved to the domain of private choice, such as decision making on a subsistence farm; in both areas, **control and coercion, not management and persuasion**, were the hallmarks of the colonial legal order.

2. The second legacy, developed fairly deliberately **in the terminal phase of colonialism**, was a highly **fragmented political culture, which sought to institutionalize conflicts and to strengthen centrifugal forces rather than to nurture and cement national unity**. Those **conflicts and forces**, generally organized around ancient claims, accrued rights, future demands, or matters that were peculiarly sensitive to race, religion, economy, and even geography were essentially divisive in character. In consequence, political parties entered the **constitutional process as purveyors of irredentist ideologies, not as vehicles for the enhancement of such constitutional values as electoral sovereignty, majoritarian rule, or popular power**. **Fragmentation** was an established style of colonial administration. Known in the British sphere as “divide and rule”, in the postcolonial state it enhanced the power of the bureaucracy and gave it complete dominance over public affairs. Indeed, the effective jurisdiction of the civil service bureaucracy in many of these countries soon extended beyond the traditional confines of administration to embrace policy decisions and reformulation. It is in the effectiveness of this bureaucratic machinery, monolithic and totally controlled by the executive branch of government, that part of the reason for the decline of multiparty government and the rise of the dominant (or one)-party state is to be found.

- What is often ignored is that, as in other spheres of public life, independence **expanded the role of the state**. Indeed, colonial relations of production and, in particular, the processes of expropriation and expatriation of surplus value from the colonies to metropolitan centers could have been secured only with heavy reliance on state power exerted through the civil service bureaucracy;

the colonial economy was the “managed economy” par excellence. The effectiveness with which this strategy worked to “develop” the expatriate sector of the economy at the expense of its indigenous counterpart was clearly understood and even admired by the elites who took over at independence.

IV. The Nature of the Constitutional State and Power Realities

- The origin of the paradox also lies in the nature of the state as “constituted” by the independence constitution, which was fundamentally different from anything the colonialists themselves had devised. This was particularly obvious in English-speaking Africa, where the constituted state was based on a remarkable distrust of centralized power. That distrust was not founded on any clear philosophy such as, for instance, **the Hobbesian principle of limited government; it was based almost entirely on the need to exclude the state (as a centralized entity) from functions it had exercised before independence.**
- **Two aspects of the constituted state were particularly disturbing.**
 1. The first was the distribution of power in these constitutions;
 2. The second was the clear tension between that distribution and the rest of the legal order. In respect to the first, instead of the highly centralized power structure that the colonial authorities had operated for more than half a century, the constituted state was erected on a fundamentally flawed and fragmented distribution of power.
- In the case of English-speaking Africa, that “power map” was based on a severely modified version of the **Westminster model**, complete with bicameral legislatures, separation of powers, judicial review of legislative and executive action, and a Bill of Rights distilled from the Magna Charta. In the case of French-speaking Africa, that map was based on the principle of constitutional tripartism as developed in the eighteenth century by Montesquieu and incorporated the provisions of the French Revolution of the Rights of Man and the Citizen of 1789.
- What was disturbing about the power maps described above was not that they were not “democratic”: in the western liberal sense they were. It was:
 - a. First, **the rationale for them that was the problem.** Whereas

institutions such as federalism (Nigeria and Uganda), regionalism (Kenya), constitutional monarchy (Swaziland and Lesotho), chieftaincy (Zambia and Zimbabwe), and of course Bills of Rights have been used throughout history in appropriate contexts as **the primary media for the socialization of politics and power; no such value-specific function was the reason for their presence in independence constitutions.** For at least a decade after independence, these institutions essentially were **operated as mechanisms for the entrenchment of interests that had accrued by reason of the exploitative nature of the colonial process itself.** Having seen the efficiency with which control of state institutions had enabled the colonial elite to convert the “national” economy into some kind of private estate, the African elites regarded as sabotage any suggestion that there should be any “withering away” of state power in the domain of public (including economic affairs). For some of these elites, **control of the instrumentalities of state power was the key to development** in the postcolonial state.

b. Another disturbing aspect of the new constitutions was their **relation to the rest of the legal order.** As the basic constitutive act provided for the continuance of the colonial legal order as the residual law of the independent state, it was necessary to ensure that a mechanism was available for the resolution of conflicts between the constitutional order and the rest of the legal order. Invariably the first or second Article of the Independence Constitution declared the former the supreme law of the land and stated that “if any other law is inconsistent with [the] constitution, that other law shall, to the extent of inconsistency, be void,” The intriguing thing is that it was the rest of the legal order, not the constitutional order, that offered African elites real power and the bureaucratic machinery with which to exercise it effectively.

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- In these circumstances it was always tempting to “opt out” of the constitutional order, the more effectively to manipulate the legal order whenever exigencies demanded it. Indeed, the constitutional order often appeared precariously perched on the legal order and the actual power structure, without the creative and rationalizing normativity

that Kelsenian positivists would have expected. The potential for subverting the constitutional order through “legitimate” exercise of bureaucratic power was present, ab initio, and almost limitless.

j) **The Development of the Paradox**

- The actual process of “subverting” the constitutional order in the sense suggested above took a number of forms.
 - a. The most notorious was the coup d’etat that did not merely involve “opting” out of the basic law, but often its total abrogation.
 - b. Another form was a cavalier disregard of constitutional niceties and processes: the postponement of election results (Lesotho 1970), the declaration of no contest against certain election candidates (Zaire 1983), etc.
- The more interesting for our analysis was the move by state elites in a number of African countries to **politicize the constitution, initially by declaring it a liability**, and subsequently **by converting it into an instrument of political warfare**.

k) **The Constitution as a Liability**

- The argument that the independence constitutional order was the state’s most serious liability was carried to the public in the rhetoric of the need for rapid economic development. It was argued that a fragmented power structure would pose severe drawbacks to central planning, financial coordination and the formulation of policies on important matters such as health, education, and agriculture. It was also argued that the constitutional order sought to frustrate the goals of equity and faster delivery of services which the fact of independence, per se, was exposed to facilitate; by focusing mainly on the **loci of power, it had failed to resolve the important ideological issue of how to locate people’s expectations and aspirations within its compass and permitted the importation of undesirable political practices alien to and incompatible with the African way of life.**

l) **The Constitution as a Political Instrument**

- With a tidy landscape before them, **state elites** then proceeded to **insert new devices whose purpose was to recentralize power** as it had been under colonial rule. **Four main devices were used;**

- I. The first was the extension of appointive and dismissal authority of the chief executive to all offices in the public service: civil, military, and “constitutional,” such as those of judges and attorneys-general;
 - II. The second was the subjection of political recruitment at all levels (local, municipal, and parliamentary) to strict party sponsorship, the more effectively to monitor commitment to retime values.
 - III. The third device was the expansion of the coercive powers of the state by allowing extensive derogation from Bills of Rights wherever these were justiciable. This expansion was usually accomplished by the **removal (or weakening) of parliamentary** supervision of emergency powers, and then by so **subjective a redefinition** of the conditions under which those powers could be invoked that any meaningful inquiry into the bona fides of any particular action was excluded.
 - IV. The fourth, and perhaps most interesting device, was to ensure that **the constitutional order conformed to the inherited legal order**; this device was often preferred whenever conflicts arose between the provisions of the constitution and those of specific legislation.
- As these and other devices found their places within the “constitutional” framework, so did the view that the constitutional arena, if properly controlled by the state elite, **offered a more efficient and effective environment for the resolution of political conflicts than even the party and certainly the electorate at large.** Indeed, **by translating a political option or decision into a constitutional device or norm, state elites gained the added advantage of passing on the problem of enforcement or supervision ultimately to the judicial arm of government.** A run to amend the constitution to deal with a political crisis became increasingly attractive as a method of reestablishing equilibrium within the body politic.
 - The **constitutional order became not an arbiter in the power process but a crucial element in political warfare, and instrument**

of and from the appropriation of power. The Constitution lost most of its claim to being the basic law of the land, **the arbiter in the power process**. State elites then revised the domain of administrative law so as to reserve **to themselves full and unfettered discretion over public affairs**; this was done, inter alia, by strengthening all aspects of public order law: security, meetings, police powers, processions and marches, aspects of licensing.

m) Reconstituted States

- **Three aspects** of the reconstitutions of most African states stand out as the clearest evidence of that result.
 - a) The first is the emergence and **predominance of a form of imperial presidentialism**,
 - b) The second is a perceptible shrinkage of the political arena and
 - c) The third is the preeminence of discretion as the basis of “constitutional” power.

A. The Rise of the Imperial Presidency

- The **fusion of executive power in a single individual** was perhaps inevitable in the historical process of **redesigning** the state in Africa. The fact that state elites chose to concentrate almost exclusively on the issue of power, per se, has produced a new style and mode of leadership unprecedented in contemporary history.
- The African presidents do not claim any divine right to rule, do not demand obsequiousness from the public at large, and are, at least in point of theory, constitutionally subject to popular accreditation. However, the **indices of imperium, the exclusive constitutional right to direct the affairs of state**, are quite clear.
 - i. The first of these is the **supremacy of the office of the President over all organs of government**. Although supremacy of the presidency over the legislature is usually indirect (the latter is not constituted by the former), its effectiveness is exercised through the (dominant) political party.

- ii. The second index is the **immunity of the President from the legal process, civil and criminal, as long as he remains in office**. There are two consequences of this immunity. The purpose is the protection of the dignity of the office rather than of the holder per se. What is interesting, however, is the political interpretation that state elites in Africa have placed on this immunity: a President is “above” the law. He cannot be sued, nor can his decisions be challenged, in court or elsewhere. The second consequence is the protection of the President against abuse, slander, and other forms of disparagement; here the general approach both in law and practice has been that if a President is thus “above” the law, he should not be subjected to the indignity of having to seek personal redress in his own courts.
- iii. The third index of imperium is the indefinite eligibility of a President for reelection; the reasons for it are several.
1. The first has to do with the mystique and sanctity surrounding the public image of the founder president; although such figures are now few and far between, this attitude seems to have passed on to second or even third generation civilian and military leaders. ...
 2. The 2nd reason inheres in the argument that political and economic stability requires continuity in leadership at the top. The institutions do not matter as much as those who are ultimately responsible for the destiny of public affairs. Provisions limiting the tenure of office of the President have never been, nor are they likely to be, successful.
 3. The fourth index of imperium is the high degree of paranoia that tends to surround the exercise of executive power in Africa, a special characteristic of military regimes, but not limited to them. This paranoia is perhaps most visible in the high attrition rate found among political functionaries and public service bureaucrats in many governments.

B. The Shrinking Political Arena

- The arena of Politics in any country ought, at least in theory, to be

open to any citizen, especially if qualified, under the law, to vote. The mechanisms for participation in that arena may vary, but it is generally accepted in all known political systems that the most important is the political party. The argument is that only through political parties can citizens effectively communicate their demands, articulate their interests, recruit persons qualified for elite roles including that of the chief executive, and, in general, be **mobilized into action or socialized**. In Africa, however, the reconstitutions have recast the political parties into different kinds of instruments; instead of expanding the arena of **politics in any or all of the above ways, political parties have been used to shrink it**.

- When as often happens in **one-party presidencies, the Chief Executive is also the de jure (or de facto) leader of the Party, the political arena may shrink even further**, skillful manipulation of the Party machinery can easily shift its entire mandate to the presidency. The **presidency**, rather than the Party of the citizenry at large, then **becomes the instrument to define the ideology to the state, to effect disciplinary control of party rank and file, to initiate or terminate public debate on important matters of national policy, and to recruit persons considered qualified for the performance of elite roles**. In countries where the Party also controls other pressure groups such as women's organization, trade unions, or employers' associations, the shrinkage can be debilitating, affiliation implying absorption.
- This **power of the party excludes the citizenry at large from any meaningful control over the conduct of government**; with respect to the legislature, that shrinkage means that the electorate may be totally excluded from **the determination of parliamentary (or similar assembly) membership**. In the one-party presidencies, party membership has become essential for entry into and for maintenance of legislative roles at local and national levels; **these roles can be terminated through simple expulsion from the Party....**

C. Discretion as the Basis of Power

- The most liberal of jurists will concede that though the essence of constitutionalism may lie in the **limitation of arbitrary** power, “the limiting of government . . . is not to be the weakening of it. The problem is to maintain a proper balance between **power and law**.” The rise of an imperial presidency and the shrinkage of the political arena as a result of the entry of political parties in the constitutional process both point to the fact that in Africa, the issue **of power and law has been resolved, for the time at least, in favor of power**. Therefore, the legal basis of executive power (if this must be found) is to be sought in the domain of administrative law, which, it is worth recalling, was and remains a complex maze of highly structured and coercive instruments. What the reconstitution added to this complex was a degree of discretion that even courts sometimes found difficult to circumscribe. **Discretion as a basis of power is most visible in the ideology and operation of national or public security legislation.**
- The operative concept of national or public security was kept deliberately fuzzy. Such fuzziness is not only an African problem; what is peculiar to Africa is the breadth of that concept in security laws. A typical definition is to be found in Kenya’s Preservation of Public Security Act, which is so generous that one could say that the definition says no more than that “the preservation of public security means whatever the authority to invoke security powers says it is.” Indeed, courts in some African countries have so decided. That breadth of definition is perhaps to be expected given the nature of the state in Africa. As J. Boli- Bennett points out, as it is the state that enacts law and determines whether that law confers sufficient power for its purposes, one must expect the state to frame the law in a manner most favorable to its proclivities. With respect to public security law, the more centralized and coercive the state is, the more loosely defined will be the operative concept itself.
- The most important point is that in an ever-increasing number of African countries, security powers can be and often are exercised without recourse to a declaration of emergency. All that is required in

Kenya and Malawi, for example, is for the relevant authority to indicate by gazette notice that in his own subjective judgment, sufficient grounds exist for the exercise of those powers. As long as such a notice is in effect, a whole set of measures, ranging from indefinite detention without trial, restriction of movement including the imposition of curfews, press censorship, to suspension of any legislation (other than the Constitution and the enabling Act itself), may be taken; in practice, gazette notices are never withdrawn. As a result, security powers are permanently available and exercisable. An important consequence of this is that the boundaries between security powers, *stricto sensu*, and ordinary criminal law are often blurred.

n) What Price Constitutionalism?

- The more important question is: What will it take to develop a tradition of constitutionalism in Africa? Although broad agreement exists on the essence of constitutionalism, fidelity to the principle that the exercise of state power must seek to advance the ends of society, the attainment has not been an easy matter. The political history of many societies is replete with struggles for an optimal balance between the few on whom constitutions confer power and the vast majority for whose benefit it is supposed to be exercised. What is clear is that in no society has that balance been achieved through the **promulgation of a constitution**, *per se*. Nor has it been achieved simply by cultivating the "correct" attitude toward a constitution.
- More important reasons explain why that balance has not been achieved in Africa. The most important of these is:
 1. The **socioeconomic condition of the continent itself**. That is a most dismal one. Some years ago, the Economic Commission for Africa (ECA) said, "the African region is most seriously affected by the burden of underdevelopment... mass poverty, unemployment, social unrest; disease, hunger and ignorance continue to plague the region."
 2. The effect of these circumstances on the politics of the constitution is that **contemporary elites in Africa are preoccupied with the perfection of ways, means, and techniques of their own survival and the expansion of opportunities for private accumulation.**

These conditions and this preoccupation are most unhealthy for the growth of constitutionalism with any model; indeed, it is doubtful whether power, at any level, can ever be fully socialized in conditions of poverty and underdevelopment.

- What then will it take to develop a tradition of constitutionalism in Africa? I am inclined to the view that Africa is destined to experience **struggles and disappointments similar to those through which the older political systems went before viable mechanisms for the control, supervision, and accountability of power can be developed and internalized.** That may be a severe position to take; but what it says is that history cannot simply be learned, it may have to be lived as well.
- **Constitutionalism is the end product of social, economic, cultural, and political progress; it can become a tradition only if it forms part of the shared history of a people.**
- In so far as a constitution is a collection of rules, establishing and regulating the system of government in a state, we can, as shown above, discern a **formal and substantive aspect of a constitution.**
- These are the *quit-essentials* of modern constitutions, to which may, of recently, be added *sustainable development* and *good governance* with their entire corollary. Herein above, **we have defined constitution as a collection of rules. Here, the term “Rule” requires to be appreciated in terms of “Institution of Law” – institution, understood as an idea of an undertaking, which persistently exists in the social environment.**
- Hence *rule*, as an *Institution of Law*:
 1. *are first precepts attaching definite consequences to definite factual situations.*
 2. *Secondly, there are principles, which are authoritative points of departure for legal reasoning in cases not covered by rules.*
 3. *Thirdly, there are conceptions, which are categories to which types or classes of transactions and situations can be referred and on the basis of which a set of rules, principles or standards becomes applicable.*
 4. *Fourthly, there are doctrines, which are the union of rules, principles and conception with regard to particular situations or*

types of cases in logically interdependent schemes so that reasoning may proceed on the basis of the basic scheme and its logical implications.

5. *Finally, there are standards prescribing the limits of permeable conducts, which are to be applied according to the circumstances of each case,”*

- For all practical reasons “rule” means standard, on the basis of which conduct, transaction (relations), situations are judged. The *realness* of principles, concepts and doctrines is self-evident. What is not clear is the function of principles, concepts and doctrines. **In short, their primary pursuits is the provision of rationale for rules or standards.** As the *rule quality* of every provision or even improvisers such as savings and excepting clauses, of any provision’s law, let alone those of a constitution is a legal propositions of rule (standard) which again is self-evident.
- If these propositions are found acceptable, the following exposition is an attempt to identify and explain some pertinent provisions of the 1995 FDRE constitution, behind which basic concepts principles and doctrines of modern constitution have been embodied.
 1. First of all, we have said earlier that constitutionalism presupposes the existence of a higher law; not in a sense of “*Grund norm*” as Kelsey has envisaged, but constitution, written or unwritten-constitution, as “*a collection of rules (standards), establish and regulate*” the system of government in a state.

V. Rule of Law

- The same have been designated as the substantive, the formal aspects of constitution. Of the formal/elements aspects of constitutive aspects, *rule of law* stand out as the most comprehensive and vital doctrine, principle and/or concept (hereinafter referred to as principle) of modern constitutions.
- In the sense of Lon Fuller’s view of the “inner morality” of law, Rule of Law is not treated in its general sense of *government under law*, but in much more specific, comprehensive manner. According to Fuller yet “... *a comparison can be made between the internal morality of law and the natural law of carpentry; which the carpenter has to follow whether his aim is to build a hideout for thieves or an*

orphanage. The internal morality is to be distinguished from the external morality or the substantive aims or values that particular legal rules (standards) seek to promote. In other world (he) developed a conception of the Rule of Law, not by appealing to moral values drawn from the external morality, (which will, of course, vary with different legal rules and systems and from natural school perspective to other schools of jurisprudence), but by spelling out the values that underlie the concept of law itself.”

- These values are characterized as the *eight desiderata*. These identified eight elements of law, recognized as necessary for a society aspiring to institute the *Rule of law* state as follows:-
 1. Laws must exist and those laws should be able to win obedience.
 2. Laws must be published.
 3. Laws must be prospective in nature so that the effect of the law may only take place after the law has been passed. Laws should be written with reasonable clarity to avoid unfair enforcement.
 4. Law must avoid contradictions. (intelligibility)
 5. Law must not command the impossible. (Non self-contradictoriness)
 6. Law must be general.
 7. Laws must stay constant through time to allow the formalization of rules; however; law also must allow for timely revision when the underlying and political circumstances have changed.
 8. Official action should be consistent with the declared rule. (Congruency)
- Standing alone, these eight elements may seem clear and understandable. But they are actually difficult to implement in the real world because governments are often compelled to prioritize one goal over another to resolve conflicts in a way that reflects society's political choice. For example, making too many laws that are too detailed and specific may make the legal system too rigid. Inflexibility could cause the particular case. Additionally, instead of only applying prospectively, few laws, under limited circumstances are meant to

apply retroactively, or to past conduct, because they were passed with the specific intent of correcting the conduct in question. Fuller recognized these conflicts and suggested that societies should prepare to balance the different objectives listed above.

- *Fuller's Criteria* is helpful in understanding *rule of law*, because it outlines the types of rules; of formal constraints that societies should develop in order to approach legal problems in a way that minimizes the abuse of the legal process and political power.
- *Rule of law*, however, extends beyond mere regulation and is also shaped by the so-called ***institutional constraints on government implied in Fuller's elements***. One such ***institutional constraint*** is the **existence of an independent judiciary**; another is **developing ways of promoting transparent governance**. *Informal constraints*, such as **local culture or traditions that may encourage citizens to organize their behavior around the law**, also help constrain the government, prompt liberty and, therefore, define the rule of law.
- Although still seemingly vague, *rule of law* may be most concretely defined as a theory of **governance relying upon a series of law**, which may be most concretely designed to encourage order and to **prevent arbitrary and unreasonable exercise of government power**. Multilateral institutions such as the World Bank and many policymakers throughout the world believe that the ***rule promotes economic development***.
- Modern economic development often comes with the introduction of a *market economy*; or, an economy based on private enterprise that does not rely on *government-planned* production. Max Weber, a famous sociologist and economist, has commented that the capitalistic order, upon which a market economy is based, is organized upon a rationale of *law-bound state*. Market economy brings buyers and sellers to the market for complex transaction from many, different parts of the world and on international scale.
- Law is important to the market economy because it is the common basis on which parties can make agreements; it provides parties with confidence that disputes can be resolved efficiently and fairly. For this reason, the *predictability* and *order* that the rule of law promotes in

substantive laws is viewed as the stabilizing force behind much economic developments. **Rule of law helps set the *rule of the game* in critical areas such as investment, property, and contract.**

- Rule of law also serves as an important assurance of social rights and government accountability. Government restraint is especially critical for many transitioning economies where a previously planned economy is to be transformed into one that is market base. When the government is no longer the sole owner of land, capital, and labor, rule of law guarantees that the crucial elements of the economy will be free from arbitrary *government will*, adopt a hands-off approach to investment and production, allowing those participating to fully exercise their rights in relations to land, labor and capital.
- The very term *Rule of Law* suggests that the law itself is the sovereign, or the ruler, in a society. As an idea, the rule of law stands for the proposition that no person or particular branch of government may rise above rules made by selected political officials. These laws reflect the morals of a society, and in a Western Democracy they are supposed to be pre-established, formalized, neutral, and objective. Everyone is subject to their dictates in the same way. The rule of law, therefore, is supposed to promote equality under the law. Thus, *rule of law* should be clearly differentiated from *rule by law*; *i.e.* the latter does not necessarily mean that the law is legitimate for it might not satisfy most of the *desideratas*.
- The term *legal transplantation* describes the phenomena of importation of legal rules from other countries. Academic debates often center on the moral and practical implications and, by extension, the imposition as rule by law. Many Developing Countries, including Turkey, Ethiopia and Japan had incorporated a good number of laws of foreign essence since World War II, despite having a variety of legal traditions of their own. When developing countries such as these adapt laws from other countries, the rules borrowed may not fit the underlying tradition, culture, and social context. Thus, in legal transplantation, countries should strive to *adopt* rather than simply adapt laws so as the newly introduced law fully complements and is reflective of their respective legal, economic, and social systems.

VI. Sustainable Development, Good Governance and Constitutional Order

- The essence of sustainable development has been described as a process of change in which the exploitation of resources, the direction of investment, the orientation of technological development and institutional change are all **in harmony and enhance both current and further potential to meet human needs and aspirations**. Sustainable development means in essence the human endeavor to meet the needs of the present without compromising the resources, opportunities of future generations to meet their own needs with due regard to essential needs of the present; without compromising the ability of the future generations to meet their own needs – with due regard to essential needs of the world's poor, consideration of existing social, organizational, environmental, technological, etc. limitations influencing the needs of present and future generations.
- Sustainable development consists of a chain of minor and major events which are supposed to characterize and direct a process of gradually merging developmental considerations and environmental concerns in the long term perspective of re-constituting the World Order to the effect that humankind in all its parts will be given a lasting opportunity to survive in justice and peace. This raises fundamental questions of the constitutional order and its development or evolution both on national and international levels.
- Good governance means qualification of constitutional order as being conducive to sustainable development.

a) Sustainable Development

- Bridging the glaring gap in terms of economic performance between the developed and the developing states, measured by whatever criteria, was considered to be an economic affair of transfer of financial and technical resources from North to South. Economic growth was identified with development.
- But, a key word introduced not long ago, namely NIEO (New International Economic Order), began to be institutionalized in UNCTAD since 1964 (U.N. Conference on Trade and Development).
- The NIEO process follows development strategy is applied from top-down, without questioning the stage of development and social structures of the states concerned and its available capacities. Little or

no attention at all was paid to the involvement of the non-state sector – the civil society and to the increasing relevance of the informal sector with its record of self-organization and spontaneous institution building. The NIEO process was largely governed by a development strategy following the modernization theory, in its western or eastern version. Development was understood as a linear process of replicating modernity; i.e. European statehood on a world wide scale.

- However, the belief in the simple export of European, N. American, history and experiences of modernization to the Third World appears today as one major cause for the failure of the development strategy pursued in the NIEO process. Top-down social and legal engineering, according to a preconceived blueprint of development, was not sufficient to allow for sustainable development, as it did not reach down to the development of the so-called hidden resources, hidden in the socio-political heritage and normative culture of the developing states themselves.
- Developing hidden resources means human centered development. It means developing locally available skills, in particular, in the sense of social, political and economic capacity building, including decentralization of government and strengthening local authorities and the so-called third dimension; bottom-up development of the informal sector. It embraces promoting the private sector and letting the informal and non-governmental sectors of the civil society to have their optimal social role in developing and sustaining a genuinely democratic system. It means developing favorable social and legal means of instituting good governance as an element of sustainable development to the sector.
- So, to achieve a sustainable development, a *bottom-up-approach involving the people at the grass-roots and the so-called hidden resources, support the top-down governmental and state-centered strategies*. The question is not either/or, but how to accommodate both within the legal structures of constitutional orders. The transition from the concept of development, underlying the NIEO-process creates expectations in an all-embracing development strategy, addressing

itself as much to governments as to people; at times depending on the support of both – national and, where relevant, international.

b) Constitutional Orders for Sustainable Development

- Constitutional Order should help address the State's Constitution and the existing social reality. The latter is especially relevant in respect to constitution and institution building in developmental context and should allow to capture and to understand better the evolutionary potential inherent in its socio-political sub-stratum.
- Sustainable development requires an interaction between government and its people; for that matter, it requires a sufficient degree of clarification and identification of the civic and interest group leaders and active promoters, service providers of the private and governmental civil services, representatives, the elite and the polity.
- Developing societies usually lack properly structured social organization just as they suffer from weak statehood. Under structured means that there is a gap of communication and interaction between government and people, due to, among other things, lack of sufficiently developed mediational organization i.e. a properly organized civil populace.
- As Ethiopia is and still will remain to be a country of traditional people, lack of such properly organized civil societies significantly hinders orderly and secure good governance. Thus, it seems there is a public concern on the issue of '*developing constitutional order*' – especially on the national level, but also on the international.
- In developing national constitutional order and promotion of good governance the issue of *participatory development* matters. So, entitlement of civil organization in the process of developing the *constitutional order* is much sought for. In case popular organizations or so-called intermediary groups cannot claim a legal status under ~~their national legal order, they might resort to seek other avenues to~~ legitimize their claim. (Like, assistance under international law from other parts of the international community?)
- On the national level, the question seems to be whether there is any law that governs all others beyond the actual sovereignty of the

country itself? Some might resort to question whether the *order* to be set admits participation, ensures legal pluralism and in the final stage, when it becomes practical, will be founded to a reasonable degree on the concepts of law.

- On the level of *international constitutional order* the problem constantly addressed is how to reduce, what is usually denounced as high transaction costs of law making and implementing them in newly emerging fields, demanding an immediate regulation. The need to overcome the rigidities inherent in an international legal order, the logic of which derives from the doctrine of state sovereignty, reciprocity and consent, is responded to by the increasing recourse to the so-called soft law in order to come to terms with newly emerging threats and developmental demands. New constellations and forms of the interaction between state, society and law, international and national, will need support also on the level of the international constitutional order, so as to allow for the optimal promotion of good governance through a well structured interaction between the governmental and the non state sector.
- A concept of law, embracing both national and international law, which derives its intrinsic information from the notion of sovereignty of states can hardly suffice in the face of the existing under structuredness of constitutional orders of the greater number of the states and in view of the fact that weak statehood still is a common feature of the international community. However, as long as the international constitutional orders of the greater number of the states and in view of the fact that weak statehood still is a common feature of the international community. However, as long as the international constitutional order still is perceived in theory and practice in light of the doctrine of state sovereignty, reciprocity and consent, the international legal order and the potential for evolutionary legal order lacks the openness and the cotangential for evolutionary change, which is ever more needed in the face of increasing environmental threats and developmental domains. Therefore, the important question is how to re-conceive the relations between society, law and states so as to secure the interaction between national and international

constitutional orders, necessary for apposite evolution in terms of sustainable development.

- At this stage strengthening the basis, legal and theoretical, for promoting the self-organization of peoples becomes topical in the larger context of the international legal structures and their evolution toward a higher state of social organization. An effective policy of sustainable development requires that good governance will be institutionalized in constitutional orders both on national and international levels.

c) **Good Governance as an Element of Sustainable Development**

- Governance means the management of the relations between government and its populace within a given constitutional order. Good governance is the opposite of poor or bad governance.
- Bad governance:
 - ❖ which reaches from denial of political and civil as well as economic, social and cultural rights,
 - ❖ administrative inefficiency and corruption,
 - ❖ to deficient legal protection and political repression, and
 - ❖ ultimately to mass violations of human rights and tyranny.
 - ❖ It entails waste of human power and natural resources;
 - ❖ it leads to environmental degradation and
 - ❖ prevents sustainable development.
- Good governance is called for to de-legitimize and to overcome governmental and administrative malpractices and non-democratic structures withstanding the realization of sustainable development. The practical meaning of good governance will vary according to the socio-economic and political particularities and the concrete state of development of the constitutional order involved. As a matter of principle, it means promoting limited government through string thinning public accountability inter alia by way of promoting popular participation in development and resource management.
- In **substantive terms**, ensuring good governance requires that the working of the political system is made transparent, that the political leaders are held publicly accountable, that fairness and equality before the law prevail and

that access to and distribution of assets, mainly land, are regulated in an equitable manner.

- In **operational terms** the realization of good governance requires that key sectors of society and the people participate, as much as possible in cooperation with the government, in shaping governance. Intermediary group's i.e. popular movements, non-governmental and community/ grass-roots based organizations often were and still are the most significant elements in promoting political freedoms and democracy as elements of sustainable development. Through popular participation the promotion of democracy will thus occur on the basis of the interaction among states, key sectors of society and people i.e. in a new partnership between government and people.
- The promotion of good governance as a process of democratization from bottom-up on the level of national constitutional orders can be frustrated or supported on the level of the international constitutional order, i.e. in the context of bilateral and multilateral development diplomacy, conducted now-a-days under the name of constructive policy dialogues between governments. However, it will need above all the support of the community of the non-governmental developmental organizations.
- The realization of good governance calls for action and raises questions both on the level of national and international constitutional orders.
- According to the Charter of Arusha, the realization of popular participation will take place on four levels:
 1. the level of the people,
 2. of governments,
 3. of the international community and
 4. of the NGOs, with the primordial objective of governments yielding space to the people. Promoting popular participation as a matter of promoting good governance implies in the first place limiting governmental powers.

Reading assignment from getachew Assefa, Mahmood Mamdani, "Social Movements and Constitutionalism: The African Context,"

